COUNTY OF MARIN

26

Voter Information Guide and Sample Ballot

Tuesday, November 3, 2026

General Election

DON'T BE LATE

Return your ballot before Election Day, and please use a ballot drop box.

All active registered voters will be mailed a vote by mail ballot, starting October 5

Return it by mail, into an Official Drop Box, or to a Vote Center

You may vote in person at any one of 21 Marin Vote Centers, see next pages for times and locations

All Vote Centers and Drop Boxes close at 8:00 pm on November 3

Marin County Elections Department
3501 Civic Center Drive, Room 121
San Rafael, CA 94903
415-473-6456 | elections@marincounty.gov
www.marinvotes.org

MARIN VOTES!

COUNTY OF MARIN

MEASURES SUBMITTED TO THE VOTERS

CITY / TOWN

CITY OF SAN RAFAEL

MEASURE W

San Rafael Essential Services Protection Measure. To provide locally controlled funding for essential city services, such as fire protection, paramedics, rapid 9-1-1 emergency response times; preventing street/road deterioration; addressing impacts of homelessness/litter/illegal dumping; and other services, shall the City of San Rafael's measure be adopted increasing the current real property transfer tax rate from 0.2% to 1% (only paid upon sale), generating approximately $7,500,000 annually until ended by voters, with annual audits and public spending disclosure?

⬭ YES ⬭ NO

IMPARTIAL ANALYSIS BY THE CITY ATTORNEY

SAN RAFAEL ESSENTIAL SERVICES PROTECTION MEASURE

MEASURE W

The San Rafael City Council has placed this measure on the ballot. If approved by the voters, this measure would modify Chapter 3.22 of the San Rafael Municipal Code to increase the real property transfer tax rate that is imposed on every transfer of real property. The tax may be paid by either the seller or the buyer or both, depending upon their agreement. The real property transfer tax is a one-time expense related to the transfer of real property ownership. It is unrelated to the annual payment of property taxes.

The current tax rate is .2% ($2.00 for each one thousand dollars or fractional part of one thousand dollars of the value of the consideration). It generates approximately $1.5 million annually. This proposed measure would increase the tax rate to 1% ($10.00 for each one thousand dollars or fractional part of one thousand dollars of the value of the consideration). For example, under the current rate, a real property sales price of $1 million generates $2,000 in real property transfer tax to the City. If the measure passes, the one-time tax paid on a $1 million sale would be $10,000. The City estimates that approval of the measure would generate an additional estimated $6.0 million annually, and when added to the revenue generated by the existing tax, for a total of $7.5 million annually.

Funds generated by the real estate transfer property tax are deposited in the City's general fund. On an annual basis, the City appropriates general funds derived from the real property tax for City services, to pay for services such as fire protection, paramedics, rapid 9-1-1 emergency response times; preventing street/road deterioration; addressing impacts of homelessness/litter/illegal dumping; and other City services. These funds cannot be taken or appropriated by the state or federal governments.

In addition, San Rafael's Voter-Approved Tax Oversight Committee (VATOC) established by City Council Resolution No. 15118 currently reviews the collection and expenditure of the revenues derived from city taxes. The VATOC would review the collection and expenditure of the revenues derived from this proposed measure, if passed.

If this measure passes, it will take effect ten days after the City Council certifies the results for the November 3, 2026, municipal election. It would remain in effect unless and until the voters decide to change it. To become effective, this measure must be approved by the majority of the City of San Rafael electors voting at the election.

A YES vote approves the measure.

A NO vote rejects the measure. The current rate would remain in effect.

s/ROBERT F. EPSTEIN
City Attorney of San Rafael

ARGUMENT IN FAVOR OF MEASURE W

Vote Yes on W to protect what makes San Rafael a great place to live.

Safe neighborhoods, rapid 9-1-1 response, well-kept parks, and quality public infrastructure **protect our safety and property values.**

With the number of 9-1-1 emergency calls rising, more on-duty firefighters and paramedics are needed to **maintain rapid response to heart attacks, strokes, fires, accidents, and other emergencies.**

San Rafael's SAFE Team responds to people under the influence of drugs/alcohol, experiencing mental illness, or in need of shelter. This program **connecting people to services, limiting the impacts of homelessness, and allowing police to focus on other priorities**, is only supported by temporary, limited funding.

San Rafael maintains **173 miles of streets and sidewalks, 25 parks, and public infrastructure serving nearly 60,000 residents**. The City has a $4,000,000 annual street maintenance budget shortfall and an underground storm drainage system to prevent flooding that is more than 50 years old.

Voting Yes on W maintains the essential city services and repairs aging infrastructure before it becomes more expensive to fix later.

Measure W funds these priorities through a modest 0.8% increase in the city's property transfer tax **only paid when a property changes ownership**. Unlike an annual property tax, this is only paid by residents and businesses buying or selling real estate.

Measure W will:

- Maintain 9-1-1 emergency medical, police, and fire response times
- Prevent street and sidewalk deterioration
- Address the impacts of homelessness, litter, and illegal dumping
- Maintain storm drain systems to prevent flooding

Measure W requires strict fiscal accountability and local control:

- All funds stay local
- No funds can be taken by the state and federal governments
- Independent oversight, annual audits, and public spending disclosure is required

Vote YES on W to maintain reliable emergency response, repair aging infrastructure before it becomes more expensive, and keep San Rafael a great place to live.

KATE COLIN
City of San Rafael Mayor

JON HAVEMAN
Member, Voter Approved Tax Oversight Committee

PATRICIA GARBARINO
Businessperson

LAWRENCE ANDOW
Member, San Rafael Board of Library Trustees

MARY MAURER
Neighborhood Association Leader

REBUTTAL TO ARGUMENT IN FAVOR OF MEASURE W

Here We Go Again

Does it seem like San Rafael keeps asking for yet another tax for the same thing? It's not your imagination!

Measure W, if passed, will be the FIFTH San Rafael City tax – all in place simultaneously -- purporting to fund essential services.

1. Basic property tax
2. 2013 Measure E sales tax increase
3. 2018 Measure G cannabis tax
4. 2020 Measure R further sales tax increase
5. 2026 Measure W property transfer tax

Each of these tax measures' ballot language simply promises what polls best:

- Preserve, protect, maintain or enhance essential city services
- Ditto for 911 emergency response, police, fire
- Maintain city streets & repair potholes

In fact, Measure W is a "general tax" that can fund pretty much any legitimate city expenditure.

And it lasts forever.

If you aren't expecting to buy or sell a home soon, Measure W appears harmless.

It isn't.

Measure W doesn't protect property values as The Primary Argument in Favor claims.

Studies show transfer taxes have lasting negative impacts:

- LOWER property values relative to neighboring cities
- REDUCE the number of homes available to buyers
- PENALIZE mobility, making it cost more for young people to trade up and for older people to downsize or move closer to family.

Why does San Rafael keep needing more taxes and fees? What's their plan to stop the treadmill?

It's time for the City of San Rafael to develop a long-term revenue and expenditure plan that's within taxpayers' means and adequately funds the essential services we value.

Until then, vote NO.

Marin REALTORS®

SEAN MURPHY
Former Board Member of San Rafael Chamber of Commerce

RICHARD TAIT
Core Group Member, Citizens for Sustainable Pension Plans

CHRIS BACKER
Realtor

PHOEBE REYES
San Rafael Resident

ARGUMENT AGAINST MEASURE W

Measure W does not deserve your support. **Vote NO.**

Vote NO for these reasons:

- Poor management of existing taxes.
- The tax has no sunset. Will last forever.
- A massive permanent housing tax.
- No restrictions on spending.
- No oversight.

No on Measure W: The City is on a taxing treadmill

In roughly 20 years, San Rafael voters have approved nine new or increased tax measures: sales taxes, library taxes, a cannabis tax, a construction tax and a paramedic tax. We just passed a library tax this June. Now they're back asking for more.

No on Measure W: The Wrong Time for a Housing Tax

Measure W is a 400% tax increase on people buying or selling homes. That adds another burden on first-time buyers and seniors trying to downsize. Transfer taxes are passed on to renters too. Measure W makes it worse!

No on Measure W: A $6 Million Tax Hike to Solve a $2 Million Budget Deficit

The City says they "might" have a $2 million deficit in 2030, so they need a $6 million tax right now? Maybe these aren't the people we should trust to balance the budget.

No on Measure W: No Restrictions on How the Money Is Spent

The City wrote the ballot question, making a lot of promises. But Measure W lets the City spend the money however it wants, with no restrictions, forever.

No on Measure W: Empty Promises of "Oversight" Can't Be Trusted

The City claims there will be oversight, but the Oversight Committee has no authority over how the money is spent. It's the same "Oversight" promise from previous taxes. Don't be fooled.

San Rafael voters have been generous – raising taxes multiple times. Tell the City to live within its means, same as we do.

Vote NO on Measure W!

MARIN REALTORS®

THE COALITION OF SENSIBLE TAXPAYERS

MICHAEL MACKINTOSH
Housing Provider, San Rafael resident

REBUTTAL TO ARGUMENT AGAINST MEASURE W

If you care about rapid 9-1-1 response, safe neighborhoods, and well-maintained streets in San Rafael, Measure W deserves your support.

Here are the FACTS:

Demand for services is growing and aging infrastructure needs repair.

The City already made $1 million in fiscally responsible reductions to balance its budget. But demand for **9-1-1 emergency medical, fire and police response is increasing,** while deteriorating **streets, storm drains, parks, and facilities** need investment. **Yes on W addresses these underfunded needs.**

Delaying street repairs costs more.

San Rafael maintains **173 miles of streets and sidewalks.** Independent engineers rate local streets **"fair" and declining,** with $4 million needed annually for maintenance and improvements. Every $1 invested in proactive maintenance can avoid $6 - $10 in future reconstruction costs. **Yes on W saves millions.**

Local 9-1-1 resources are strained.

Nearly **80% of San Rafael Fire Department 9-1-1 responses are medical emergencies.** An independent assessment found San Rafael's two dedicated paramedic ambulances cannot consistently meet response time standards, requiring fire engines to be diverted to ambulance transports. **Yes on W helps maintain rapid 9-1-1 response.**

SAFE Team funding is temporary and limited.

The SAFE Team addresses homelessness, mental illness and substance abuse by connecting people to services. **Yes on W sustains and expands this proven program, allowing police to focus on crime.**

Measure W is not an annual property tax.

This modest, one-time 0.8% transfer tax increase is a small investment in the safe neighborhoods, infrastructure, and quality of life that **protect San Rafael's strong property values.**

Join San Rafael's trusted leaders and vote Yes on W.

MARIN PROFESSIONAL FIREFIGHTERS, IAFF L1775
John J. Bagala, Union President

MARIBETH BUSHEY
City of San Rafael City Councilmember

JOHN CHUNG
Member, San Rafael Fire Commission

MELISSA PRANDI
San Rafael Real Estate Broker and Fifty Year San Rafael Resident

GARY PHILLIPS
Former Mayor of San Rafael

FULL TEXT OF MEASURE W

ORDINANCE NO.

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF SAN RAFAEL AMENDING CHAPTER 3.22 OF THE SAN RAFAEL MUNICIPAL CODE TO INCREASE THE RATE OF THE REAL PROPERTY TAX AND ADD AN OVERSIGHT PROVISION

SECTION 1. TITLE

This Ordinance shall be known and may be cited as the "San Rafael Real Property Transfer Tax Ordinance."

SECTION 2. FINDINGS

The City Council of the City of San Rafael hereby makes the following findings in connection with the adoption of this Ordinance:

WHEREAS, The City of San Rafael provides essential municipal services to residents, businesses, and visitors, including fire suppression and emergency response, law enforcement, street maintenance and repair, stormwater infrastructure, parks and open space, library services, and community programs.

WHEREAS, The City faces structural deficits in its General Fund projected to reach approximately $2.0 million to $3.0 million by fiscal year (FY) 2028-29, due to lacking sufficient and reliable funding to support investments in maintenance and replacement of capital infrastructure, increased service-level demands, particularly in the area of public safety, continue to place additional pressures on existing resources cost pressures driven by post-pandemic inflation, increased fuel, energy and utility costs, buoyed by ongoing uncertainty in the general economy.

WHEREAS, By seeking an increase in the real estate property transfer tax rate from 0.2% to 1.0%, the resulting increase in General Fund revenues would significantly aid in addressing priority unfunded needs, help make-up for the comparatively low allocation percentage of local property taxes retained by the City (currently 12.2%), and further the City's goal of fiscal sustainability by contributing to a broader diversification of the City's general fund revenue sources, predominantly reliant on property tax and sales tax revenues.

WHEREAS, A real property transfer tax is a one-time levy on the transfer of ownership of residential and commercial real estate pursuant to a purchase or sale. Payment of the one-time Real Estate Property Transfer Tax is the joint responsibility of the parties to a real estate transaction—the buyer(s) and seller(s).

WHEREAS, after careful evaluation of the City's financials, evaluation of viable potential revenue enhancement measures, and community surveys assessing the public's views and priorities, the City Councils finds that increasing the rate of the existing Real Property Transfer Tax from .2% to 1% and submitting a measure to the voters, with a recommendation for approval, is the most prudent, reasonable, and fiscally responsible action in order for the City to maintain current service levels and quality.

WHEREAS, this Ordinance shall become effective ten days after the vote is declared by the City Council pursuant to Elections Code Section 9217;

WHEREAS, if adopted, the City's Voter-Approved Tax Oversight Committee, established by City Council Resolution No. 15118, will provide the resident oversight to review the collection and expenditure of tax revenues generated under the authority of this Chapter.

NOW, THEREFORE, THE PEOPLE OF THE CITY OF SAN RAFAEL DO ORDAIN AS FOLLOWS:

SECTION 3. AMENDMENT OF MUNICIPAL CODE

Section 3.22.020 of Chapter 3.22 of the San Rafael Municipal Code is amended to read, with additions shown in underline and deletions shown in strikethrough, as follows:

3.22.020 Imposition of tax.

A tax is imposed on each transfer, by deed, instrument or writing, by which any lands, tenements or other real property located in the city are sold, granted, assigned, transferred or otherwise conveyed to, or vested in, a purchaser or purchasers thereof, or any other person or persons at or by the direction of said purchaser or purchasers, when the value of the consideration exceeds one hundred dollars, said tax to be at the rate of ~~two~~ ten dollars for each one thousand dollars or fractional part of one thousand dollars of the value of the consideration.

Section 3.22.235 is added to Chapter 3.22 of the San Rafael Municipal Code, with the additions shown in underline as follows:

3.22.235 Oversight Committee

The City's Voter Approved Tax Oversight Committee, as established by City Resolution No. 15118, and as may be amended, shall submit a report on at least an annual basis to the City Council evaluating whether the proceeds from this tax are being properly expended for the purposes set forth in this Chapter. Proceeds from this tax shall be subject to the City's generally applicable independent annual audit procedures and requirements.

SECTION 5. SEVERABILITY

If any provision of this Ordinance, or application thereof to any person or circumstance, is held invalid, such invalidity shall not affect other provisions or applications of this Ordinance which can be given effect without the invalid provision or application, and to this end the provisions of this chapter are declared to be severable.

SECTION 6. CALIFORNIA ENVIRONMENTAL QUALITY ACT (CEQA).

The approval of this ordinance is exempt from the California Environmental Quality Act (Public Resources Code §§ 21000 et seq., "CEQA," and 14 Cal. Code Reg. §§ 15000 et seq., "CEQA Guidelines"). This tax submitted to the voters is a general tax that can be used for any legitimate governmental purpose. It is not a commitment to any particular action nor does it authorize any private activity, but merely taxes such activity as otherwise occurs. As such, under CEQA Guidelines section 15378(b)(4), the tax is not a project within the meaning of CEQA because it creates a government funding mechanism that does not involve any commitment to any specific project that may result in a potentially significant physical impact on the environment. If revenue from the tax is

used for a purpose that would have either such effect, the City will undertake the required CEQA review for that project. Therefore, CEQA analysis is not required at this time.

SECTION 7. EFFECTIVE AND OPERATIVE DATES

This ordinance shall be effective ten days after the date on which the City Council has declared that the voters of the City of San Rafael have approved the ordinance by a vote of no less than a majority of the votes cast by the electors voting on the tax measure set forth in this ordinance at the General Municipal Election to be held on Tuesday, November 3, 2026.

SECTION 8. CERTIFICATION AND PUBLICATION

Upon approval by the voters, the City Clerk shall certify to the passage and adoption of this ordinance and shall cause it to be published, in full or in summary form, according to law.